

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #10	CCRB Case #: 201708495	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/11/2017 2:45 AM	Location of Incident: Reade Street and West Broadway	18 Mo. SOL 4/11/2019	Precinct: 01		
Date/Time CV Reported Thu, 10/12/2017 4:44 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 10/12/2017 4:44 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alex Mooney	17702	950908	TB M/TF
2. SGT Ioannis Argyros	01847	920042	TB M/TF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Darren Tyson	23796	954382	WTC CMD

Officer(s)	Allegation	Investigator Recommendation
A . SGT Ioannis Argyros	Abuse: Sergeant Ioannis Argyros stopped § 87(2)(b)	A . Exonerated
B . POM Alex Mooney	Abuse: Police Officer Alex Mooney stopped § 87(2)(b)	B . Exonerated
C . SGT Ioannis Argyros	Force: Sergeant Ioannis Argyros used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Alex Mooney	Force: Police Officer Alex Mooney used physical force against § 87(2)(b)	D . Unsubstantiated
E . SGT Ioannis Argyros	Discourtesy: Sergeant Ioannis Argyros spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . POM Alex Mooney	Discourtesy: Police Officer Alex Mooney spoke discourteously to § 87(2)(b)	F . Unsubstantiated
G . SGT Ioannis Argyros	Abuse: Sergeant Ioannis Argyros interfered with § 87(2)(b)'s use of a recording device.	G . Substantiated
H . POM Alex Mooney	Abuse: Police Officer Alex Mooney threatened to arrest § 87(2)(b)	H . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On October 11, 2017, § 87(2)(b) filed a complaint with IAB. That complaint was received at the CCRB on October 18, 2017 via referral number § 87(2)(b). § 87(2)(b) also filed a complaint with the CCRB on October 12, 2017. On October 11, 2017, at approximately 2:45 a.m., § 87(2)(b) was at the intersection of Reade Street and West Broadway in Manhattan when an unmarked van driven by Sgt. Ioannis Argyros and PO Alex Mooney of Transit Bureau Manhattan Task Force, passed in front of § 87(2)(b) almost hitting him. § 87(2)(b) struck the side of the van with his hand. The van stopped and Sgt. Argyros and PO Mooney exited the van and stopped § 87(2)(b) (**Allegations A and B: Abuse of Authority – Exonerated**). Sgt. Argyros and PO Mooney allegedly punched § 87(2)(b) in the arms and head (**Allegations C and D: Force – Unsubstantiated**). Both officers allegedly cursed at § 87(2)(b) using the words “fuck” and “motherfuck.” (**Allegation E and F: Discourtesy – Unsubstantiated**). § 87(2)(b) started to record video of the officers. Sgt. Argyros approached § 87(2)(b) and stopped the recording by allegedly taking the cell phone from § 87(2)(b) (**Allegation G: Abuse of Authority – Substantiated**). PO Mooney allegedly told § 87(2)(b) “I’m going to throw you in jail.” (**Allegation H: Abuse of Authority – Unsubstantiated**). PO Darren Tyson of the World Trade Center Command was driving by, and stopped his vehicle upon seeing the incident. Sgt. Argyros returned § 87(2)(b)’s cell phone to him. § 87(2)(b) used his cell phone to record another video of Sgt. Argyros. § 87(2)(b) was released without a summons or arrest. § 87(2)(b) then called 911, and other uniformed officers responded to the location. The uniformed officers transported § 87(2)(b) to the 1st Precinct stationhouse where he filed a complaint.

§ 87(4-b), § 87(2)(g)

The only video of the incident was recorded by § 87(2)(b) and was obtained by the investigation.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Ioannis Argyros stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Alex Mooney stopped § 87(2)(b)

It is undisputed that § 87(2)(b) struck the side of Sgt. Argyros and PO Mooney’s van with his hand. It is also undisputed that § 87(2)(b) then ran from Sgt. Argyros and PO Mooney and that the officers pursued him.

§ 87(2)(b) was standing at the intersection of West Broadway and Reade Street when an unmarked van making a turn at the intersection came close to hitting § 87(2)(b). § 87(2)(b) stated that he struck the side of the van with his palm to let the occupants know he was there (**Board Review 1**). The van stopped immediately and Sgt. Argyros and PO Mooney alighted from the van dressed in plainclothes. § 87(2)(b) did not know they were police officers and ran across the street away from them. The officers caught up to § 87(2)(b) on the west side of West Broadway in the middle of Reade Street.

Sgt. Argyros (**Board Review 2**) stated that § 87(2)(b) was initially aggressive and verbally challenging them, but ran once they verbally identified themselves as police officers. PO Mooney stated (**Board Review 3**) that he saw § 87(2)(b) approach their van before hearing a loud bang which he believed was caused by either a punch or a kick by § 87(2)(b). Both officers stated that they suspected § 87(2)(b) of Criminal Mischief in possibly damaging their van by striking it, and that his aggressive demeanor indicated that he had struck the van intentionally. After the officers caught up to § 87(2)(b), PO Mooney returned to the van to retrieve handcuffs. PO Mooney then drove the van to where Sgt. Argyros and § 87(2)(b) were located and both officers saw that there was no damage to the van. The officers then decided to release § 87(2)(b) without charges.

Officers may conduct a stop of a person if they possess reasonable suspicion that the person has committed, is committing or is about to commit a crime. *People v. DeBour*, 40 NY.2d 210 (1976) (**Board Review 4**).

According to NYS Penal law 145.00, a person is guilty of Criminal Mischief in the fourth degree when, “having no right to do so nor any reasonable ground to believe that he or she has such right, he or she: 1) intentionally damages property of another person;” (**Board Review 5**)

§ 87(2)(g)
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§ 87(2)(g) It is therefore recommended that
Allegations A and B be closed as **Exonerated**.

Allegation (C) Force: Sergeant Ioannis Argyros used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Alex Mooney used physical force against § 87(2)(b)

It is not in dispute that § 87(2)(b) fell on the ground after running away from Sgt. Argyros and PO Mooney. § 87(2)(g)

§ 87(2)(b) stated that he ran across West Broadway to Reade Street between West Broadway and Hudson Street, when Sgt. Argyros and PO Mooney caught up to him. § 87(2)(b) was not sure what caused him to fall to the ground, but that he landed on his butt with his hands out to the side breaking his fall. As § 87(2)(b) was in this sitting position, he covered his head with both arms. § 87(2)(b) alleged that Sgt. Argyros and PO Mooney punched him approximately six times while he was seated in this position on the ground. One punch struck § 87(2)(b) on the side of the head and on the other blows were blocked by § 87(2)(b)'s arms.

Sgt. Argyros and PO Mooney both stated that § 87(2)(b) fell on the ground while running from them, but they did not know what caused him to fall. Both officers denied striking § 87(2)(b). They stated that § 87(2)(b) flailed his arms while seated on the ground and that they attempted to grab hold of his arms. PO Mooney returned to the unmarked van to retrieve handcuffs because neither of them had any on their person. Sgt. Argyros stated he remained with § 87(2)(b) who

calmed down and allowed § 87(2)(b) to stand up. After § 87(2)(b) stood up, he stated that he lived nearby and appeared apologetic. § 87(2)(b) does in fact live in the vicinity on Reade Street, a fact Sgt. Argyros would be unlikely to know otherwise.

§ 87(2)(b) stated that he sustained abrasions to the palms of his hands when he broke his fall, but did not sustain any other injuries. § 87(2)(b) did not seek any medical treatment and there were no visible injuries to his hands during his CCRB interview which was 12 days after the incident.

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **Unsubstantiated**.

Allegation (E) Discourtesy: Sergeant Ioannis Argyros spoke discourteously to § 87(2)(b)

Allegation (F) Discourtesy: Police Officer Alex Mooney spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that both Sgt. Argyros and PO Mooney used the words “fuck” and “motherfuck” in their interactions with him. § 87(2)(b) did not recall what context the words were used and could not provide a specific example.

Sgt. Argyros stated he did not recall using such words and PO Mooney denied using such words. Both officers denied hearing the other use such language. In the two videos recorded by § 87(2)(b) neither officer could be heard speaking discourteously to § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **Unsubstantiated**.

Allegation (G) Abuse of Authority: Sergeant Ioannis Argyros interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(g)

§ 87(2)(b) stated that he used his cell phone to record Sgt. Argyros and PO Mooney as they were walking to their van. The video showed Sgt. Argyros and PO Mooney walking away from § 87(2)(b) towards an unmarked van parked on the south east side of the intersection of Reade Street and West Broadway. Sgt. Argyros and PO Mooney both turned back towards § 87(2)(b) and Sgt. Argyros asked, “Dude you really want to do this?” § 87(2)(b) responded, “No. I don’t want to do anything.” Sgt. Argyros and PO Mooney both told § 87(2)(b) “Get out of here.” § 87(2)(b) asked, “What the fuck are you guys doing?” Sgt. Argyros and PO Mooney then turned back and resumed walking towards the van away from § 87(2)(b). § 87(2)(b) stood across on the west side of West Broadway, the opposite side from the van and focused in on PO Mooney and the

license plate of the van. Sgt. Argyros walked up to the camera and stated, “Hi! How you doing?” There was then a sudden movement of the camera and the video ended. § 87(2)(b) alleged that Sgt. Argyros grabbed the phone from his hand when the video ended.



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Sgt. Argyros was shown the above video during his CCRB interview. Sgt. Argyros confirmed that he and PO Mooney were walking to their van and that when they were telling § 87(2)(b) “Get out of here” § 87(2)(b) was free to leave. He also confirmed that he approached § 87(2)(b) at the end of the video and said, “Hi! How you doing?” When asked why he approached § 87(2)(b) at that time, Sgt. Argyros initially stated, “No reason.” After a conferral with his attorney off the record, Sgt. Argyros amended his answer and stated that he approached § 87(2)(b) because he wanted him to leave the location and go home and did not want § 87(2)(b) to cause a scene. Sgt. Argyros denied that he grabbed § 87(2)(b) s cell phone. Sgt. Argyros stated that around this point in time PO Tyson arrived on the scene and § 87(2)(b) went to speak to PO Tyson. PO Mooney was also shown the video during his interview. PO Mooney stated that he did not know what happened when Sgt. Argyros approached § 87(2)(b) PO Mooney denied that Sgt. Argyros grabbed § 87(2)(b) s cell phone. PO Mooney also stated that around this time, PO Tyson arrived on the scene. PO Tyson stated that he arrived to see § 87(2)(b) standing in the street talking to Sgt. Argyros and PO Mooney. PO Tyson did not see Sgt. Argyros in possession of § 87(2)(b) s phone.

The Office of the Deputy Commissioner’s Legal Bureau Bulletin, Vol. 26, No. 2, states that individuals have a right to lawfully record police activity. The bulletin indicates that under no circumstances should a Member of the Service, “Threaten, intimidate or otherwise discourage an observer from recording the police officer’s activities, assuming the observer is at a safe distance; Intentionally block or obstruct cameras or other recording devices when there is no legitimate law enforcement reason to do so;” (**Board Review 6**)

According to Patrol Guide Procedure 208-03, taking photographs, videotapes or tape recordings does not constitute probable cause for arrest or detention of an onlooker unless the safety of officers or other persons is directly endangered or the officer reasonably believes they are endangered or the law is otherwise violated. (**Board Review 7**)

§ 87(2)(g)
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Therefore, it is recommended that **Allegation G** be closed as **Substantiated**.

Allegation (H) Abuse of Authority: Police Officer Alex Mooney threatened to arrest

§ 87(2)(b)

§ 87(2)(b) alleged that after Sgt. Argyros stopped him from recording the video, PO Mooney brandished a pair of handcuffs and stated, “I’m going to lock you up.” According to § 87(2)(b) PO Tyson arrived on scene shortly after this point.

PO Mooney and Sgt. Argyros denied that this occurred. PO Tyson (**Board Review 8**) stated that he was driving to his post after his meal break, and saw § 87(2)(b) and the officers standing in the street talking. PO Tyson did not see PO Mooney or Sgt. Argyros physically detain § 87(2)(b) in any way. PO Tyson stated that § 87(2)(b) approached him questioning whether Sgt. Argyros and PO Mooney were indeed police officers. PO Tyson observed that Sgt. Argyros and PO Mooney were wearing the plainclothes colors of the day as well as their badges and confirmed to § 87(2)(b) that they were indeed police officers. PO Tyson stated that he did not know the circumstances of § 87(2)(b)’s interactions with the officers. PO Tyson stated that Sgt. Argyros and PO Mooney told § 87(2)(b) that he was free to go and that he advised § 87(2)(b) of the same. § 87(2)(b) then recorded a second video, showing Sgt. Argyros standing in front of his van. There was no threat of arrest in this video.



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§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first and only CCRB complaint filed by § 87(2)(b) (Board Review 12).
- This was the first complaint filed against PO Mooney in his six year tenure at the NYPD.

§ 87(2)(g)

- Sgt. Argyros has had eight other complaints involving 20 allegations pleaded against him in his 20 year tenure at the NYPD. In Complaint number 201503211, allegations of threat of force, discourteous language and refusal to obtain medical treatment were substantiated against Sgt. Argyros. The board recommended charges and a penalty of 10 forfeited vacation days were imposed. Sgt. Argyros has had three other allegations physical force pleaded against him, two of the allegations were exonerated and one was unsubstantiated. Sgt. Argyros has also had three other allegations of discourteous language pleaded against him. Two of the allegations were unsubstantiated and one was exonerated.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate with the officers § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator:	_____	<u>Inv. Simon Wang</u>	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date